

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA**

RUBY FREEMAN <i>and</i> WANDREA MOSS, <i>Plaintiffs,</i> v. RUDOLPH W. GIULIANI, <i>Defendant.</i>	Civil Action No. 21-3354 (BAH) Judge Beryl A. Howell
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**NOTICE OF DEFENDANT GIULIANI’S FAILURE TO COMPLY WITH
THE AUGUST 30, 2023 ORDER**

Plaintiffs Ruby Freeman and Wandrea’ ArShaye Moss, by and through their counsel, hereby notify the Court of Defendant Rudolph Giuliani’s failure to comply with the Court’s Order of August 30, 2023, granting plaintiffs’ motion for discovery sanctions (the “Sanctions Order”), and for the Court’s information, state the following:

1. The Sanctions Order ordered Defendant Giuliani to take or cause the Giuliani Businesses¹ to take certain actions by September 20, 2023, including:

- a. To produce complete responses to plaintiffs’ Requests for Production (“RFP”) Numbers 40 and 41;
- b. To ensure that Giuliani Communications LLC and Giuliani Partners LLC (collectively, the “Giuliani Businesses”) produce complete responses to plaintiffs’ requests for financial documents and viewership metrics, including RFP Numbers 19 and 35 and designate one or more corporate representatives to sit for depositions on behalf of the Giuliani Businesses;

¹ The Giuliani Businesses are defined as Giuliani Communications LLC and Giuliani Partners LLC.

- c. To reimburse plaintiffs' attorneys' fees and costs associated with their successful first motion to compel discovery in the amount totaling \$89,172.50, with interest on that amount to accrue from July 25, 2023; and
 - d. To ensure that the Giuliani Businesses reimburse plaintiffs' attorneys fees associated with their successful motion to compel discovery from those Businesses in the amount totaling \$43,684, with interest on that amount to accrue from September 20, 2023 against defendant Rudolph W. Giuliani personally if his Businesses fail to timely comply.
2. As of the date of this filing, Defendant Giuliani has failed to take any of the actions, or to cause the Giuliani Businesses to take any of the actions, so-ordered in the Sanctions Order.
3. Plaintiffs are considering what further relief may be appropriate and will file a request, if any, no later than September 29, 2023, unless the Court directs otherwise.

DATED: September 21, 2023

/s/ Michael J. Gottlieb

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**Admitted pro hac vice*

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CERTIFICATE OF SERVICE

I hereby certify that on September 21, 2023, the foregoing document was filed with the Clerk of the Court of the U.S. District Court for the District of Columbia by using the CM/ECF system, which will automatically generate and serve notices of this filing to all counsel of record.

Dated: September 21, 2023

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